Constitutional law
We The People
Liberty
Equality
CONSTITU COURT
Fundamental rights
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Constitutions of Laws
Liberty
Justice

FUNDAMENTAL RIGHTS: BASIC FACTS & ORIGINS

PART & ARTICLES

Found in Constitution of India.

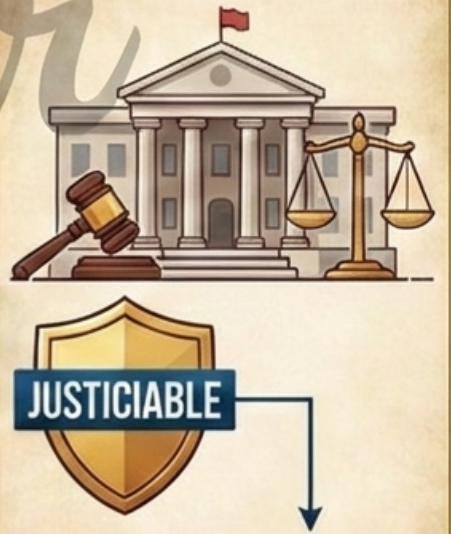
SOURCE

Inspired by Constitution of USA.

MAGNA CARTA

Described as the 'Magna Carta of India'.

NATURE



Legally enforceable by courts against State actions.

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FUNDAMENTAL RIGHTS: KEY EXAM FEATURES

(Highly Tested in Prelims)

NOT ABSOLUTE

Subject to 'reasonable restrictions' (e.g., security, public order).

Check for 'Reasonable Restrictions' in options.

CITIZENS VS. FOREIGNERS

ONLY CITIZENS: Arts 15, 16, 19, 29, 30.

BOTH: Arts 14, 20-28.

Crucial for objective questions.

AMENDMENT STATUS

Can be amended, but must not violate Basic Structure (Kesavananda Bharati case, 1973).

SUSPENSION DURING EMERGENCY

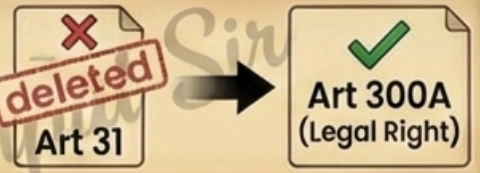
✗ **Art 19**

(Except war/external aggression)

EXCEPTION: Arts 20 & 21 NEVER SUSPENDED.

CLASSIFICATION OF FUNDAMENTAL RIGHTS (Originally 7, Now 6)

> **IMPORTANT NOTE:** The Right to Property (Article 31) was **DELETED** from the list of Fundamental Rights by the 44th Amendment Act, 1978. It is now strictly a **LEGAL/CONSTITUTIONAL RIGHT** under Article 300A in Part XII.



I. RIGHT TO EQUALITY
(Articles 14–18)

Equality before low, Prohibition of discrimination, Equality of opportunity, Abolition of untouchability & titles.

II. RIGHT TO FREEDOM
(Articles 19–22)

6 Freedoms (Speech, Assembly, etc.), Protection in conviction, Life & Personal Liberty, Education (21A), Arrest protection.

III. RIGHT AGAINST EXPLOITATION
(Articles 23–24)

Prohibition of human trafficking, forced labor, and child employment.

IV. RIGHT TO FREEDOM OF RELIGION
(Articles 25–28)

Freedom of conscience, practice, manage religious affairs, no religious taxes or instructions.

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V. CULTURAL AND EDUCATIONAL RIGHTS
(Articles 29–30)

Protection of minority culture, Right to establish educational institutions.

VI. RIGHT TO CONSTITUTIONAL REMEDIES (Article 32)

Heart & Soul of Constitution. Supreme Court enforcement via Writs: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto.

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I. RIGHT TO EQUALITY (Articles 14–18)

ARTICLE 14: EQUALITY BEFORE LAW

Equality before the law & Equal protection of laws. No person is above the law; like should be treated alike.

ARTICLE 15: PROHIBITION OF DISCRIMINATION

Prohibition of discrimination on grounds ONLY of religion, race, caste, sex, or place of birth.

ARTICLE 16: EQUALITY OF OPPORTUNITY IN PUBLIC EMPLOYMENT

Equal chance for all citizens in matters of employment or appointment to any office under the State.

ARTICLE 17: ABOLITION OF UNTOUCHABILITY

UNTOUCHABILITY

Abolition of 'untouchability' and its practice in any form is forbidden. enforcement of any disability arising out of it is an offense.

ARTICLE 18: ABOLITION OF TITLES

Abolition of titles, except for military and academic distinctions. Citizens cannot accept titles from foreign states.

II. RIGHT TO FREEDOM (Articles 19–22)

ARTICLE 19: SIX FOUNDATIONAL FREEDOMS

ARTICLE 20: PROTECTION IN CONVICTION

- No ex-post-facto laws (retroactive punishment).
- No double jeopardy (punished twice for same offense).
- No self-incrimination (witness against self).

ARTICLE 21: LIFE & PERSONAL LIBERTY

Protection of life and personal liberty. No deprivation except by procedure established by law.

ARTICLE 21A: RIGHT TO ELEMENTARY EDUCATION

Added by 86th Amendment, 2002. Mandates free & compulsory education for ages 6-14.

ARTICLE 22: PROTECTION AGAINST ARREST & DETENTION

Safeguards in certain cases, includes rights regarding preventive detention.

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III. RIGHT AGAINST EXPLOITATION (Articles 23-24)

ARTICLE 23: PROHIBITION OF TRAFFIC IN HUMAN BEINGS & FORCED LABOR

Prohibition of human trafficking, forced labor (begar), and other similar forms of forced labor.

ARTICLE 24: PROHIBITION OF CHILD EMPLOYMENT

Prohibition of employment of children below the age of 14 in factories, mines, or any other hazardous jobs.

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IV. Right to Freedom of Religion (Articles 25–28)

ARTICLE 25: FREEDOM OF CONSCIENCE & PROFESSION

Freedom of conscience and right to freely profess, practice, and propagate religion.

ARTICLE 26: MANAGE RELIGIOUS AFFAIRS

Freedom to establish and maintain institutions for religious and charitable purposes, and to manage its own affairs in matters of religion.

ARTICLE 27: NO TAXES FOR RELIGIOUS PROMOTION

Freedom from payment of taxes specifically for the promotion or maintenance of any particular religion or religious denomination.

ARTICLE 28: FREEDOM IN EDUCATIONAL INSTITUTIONS

Freedom from attending religious instruction or worship in certain educational institutions wholly maintained out of State funds.

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V. CULTURAL AND EDUCATIONAL RIGHTS (ARTICLES 29-30)

ARTICLE 29: PROTECTION OF LANGUAGE, SCRIPT, AND CULTURE OF MINORITIES

Any section of the citizens residing in any part of India having a distinct language, script, or culture of its own shall have the right to conserve the same.

ARTICLE 30: RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.

VI. RIGHT TO CONSTITUTIONAL REMEDIES (Article 32)

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SUPREME COURT
(Art 32)

Enforce these rights by issuing specific **WRITS**

Article 32: Right to move the Supreme Court for enforcement of Fundamental Rights

HIGH COURTS
(Art 226)

Enforce these rights by issuing specific **WRITS**

HABEAS CORPUS

'To have the body'.

Issued to release a person unlawfully detained.

Ensures personal liberty.

MANDAMUS

'We command'.

Issued to a public official/body to perform a mandatory duty.

Ensures public duty.

PROHIBITION

Issued by a higher court to a lower court to stop exceeding its jurisdiction.

Preventive in nature.

CERTIORARI

Issued by a higher court to quash an order or transfer a case from a lower court.

Curative in nature.

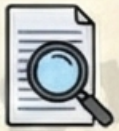
QUO-WARRANTO

'By what authority'.

Issued to inquire into the legality of a person holding a public office.

Prevents illegal usurpation.

4. IMPORTANT EXCEPTIONS & MACHINERY (Articles 12, 13, 33-35)

ARTICLE	QUICK SUMMARY FOR EXAMS
Art 12	Defines 'The State' (Includes Govt/Parliament of India, State • State Govts/Legislatures, Local authorities, Statutory bodies like LIC, , ONGC).
Art 13	Declares that laws inconsistent with Fundamental Rights shall be void. (This is the express basis for the Doctrine of Judicial Review). 
Art 33	Empowers Parliament to restrict or abrogate fundamental rights of armed forces, paramilitaries, police, & intelligence agencies to ensure proper discharge of duties.
Art 34	Restricts fundamental rights while martial law (military rule) is in force in any specific area.
Art 35	Empowers **ONLY** Parliament (and strictly not state legislatures) to make laws to give effect to certain Fundamental Rights, ensuring uniformity across India.

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FUNDAMENTAL RIGHTS: KEY AMENDMENTS & DETAILS

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Detailed Overview of Constitutional Changes to Part III

EARLY RESTRICTIONS
(1st & 4th Amendments)

1st Amendment (1951):
- Added 'reasonable restrictions' to Article 19(1)(a) (speech) for public order, friendly relations with foreign states, and incitement to an offence. Inserted Articles 31A and 31B to protect land reform laws from judicial review (Ninth Schedule).

4th Amendment (1955):
- Clarified that compensation for acquired property (Article 31) was not justiciable, empowering the state to acquire property for public purpose.

PARLIAMENT'S POWER & PROPERTY
(24th & 25th Amendments)

24th Amendment (1971):
- Affirmed Parliament's power to amend any part of the Constitution, including Fundamental Rights (Article 13 and 368).

25th Amendment (1971):
- Further curtailed property rights, stating that no law giving effect effect to Directive Principles (Article 39(b) and (c)) could be challenged for violating Articles 14, 19, or 31.
- Inserted Article 31C.

EMERGENCY & RESTORATION
(42nd & 44th Amendments)

42nd Amendment (1976):
- The 'Mini-Constitution'. Added
- Fundamental Duties (Part IV-A).
- Prioritized all Directive Principles over Fundamental Rights.
- Added 'Socialist', 'Secular' to Preamble.

44th Amendment (1978):
- Abolished Right to Property (Article 31) as a Fundamental Right, making it a legal right under Article 300A.
- Restored civil liberties, ensuring
- Article 20 and 21 cannot be suspended even during an emergency.

MODERN CHANGES
(86th, 97th, & 103rd Amendments)

86th Amendment (2002):
- Inserted Article 21A, making Right to Education a Fundamental Right for children aged 6-14.

97th Amendment (2011):
- Added the right to form cooperative societies to Article 19(1)(c).

103rd Amendment (2019):
- Provided for 10% reservation for Economically Weaker Sections (EWS) in educational institutions and public employment by amending Articles 15 and 16.

Note: The power to amend is subject to the 'Basic Structure Doctrine' established in the Kesavananda Bharati Case (1973).